

Hetram v. U.P.P.C.L.

Allahabad High Court · Division Bench · 18 February 2016 · Writ-C No. 7464 of 2016 · **Writ disposed; liberty to object under clause 6.5 before Executive Engineer.**

HEADNOTE

Petitioners who approached the High Court against U.P.P.C.L. were held to have an adequate remedy of raising objections under clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer. The writ was disposed of with liberty to file an appropriate representation/objection, to be decided within one month of submission with a certified copy of the order.

FACTUAL SUMMARY

Hetram and three others filed Writ-C No. 7464 of 2016 in the Allahabad High Court against U.P. Power Corporation Limited and another, seeking writ relief in a supply-code dispute with the licensee. Counsel for the petitioners and for the respondents were heard. The Court did not record the underlying billing or connection controversy and did not examine the merits of the grievance that had prompted the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Consumers have an adequate remedy of raising objections under clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer; a writ petition will be disposed of with liberty to file an appropriate representation/objection before that authority, who shall decide it and pass appropriate orders within one month of submission together with a certified copy of the Court's order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONERS' BILLING OR SUPPLY GRIEVANCE AGAINST THE LICENSEE

The writ was disposed solely on the availability of the clause 6.5 objection before the Executive Engineer. ¶ 1